

FEDERAL MARITIME COMMISSION

Docket No. 17-09

FIAT CHRYSLER AUTOMOBILES NV, FCA US LLC, AND FCA ITALY S.P.A.

v.

**WALLENIOUS WILHELMSSEN LOGISTICS AS, WALLENIOUS WILHELMSSEN
LOGISTICS AMERICAS LLC, EUKOR CAR CARRIERS INC.,
NIPPON YUSEN KABUSHIKI KAISHA, NYK LINE (NORTH AMERICA) INC.,
MITSUI O.S.K. LINES, LTD., MOL (AMERICA) INC.,
KAWASAKI KISEN KAISHA, LTD., "K" LINE AMERICA, INC.,
COMPAÑÍA SUD AMERICAN DE VAPORES S.A., AND HOËGH AUTOLINERS AS**

**PARTIAL OPPOSITION OF RESPONDENTS WALLENIOUS WILHELMSSEN
LOGISTICS AS, WALLENIOUS WILHELMSSEN LOGISTICS AMERICAS LLC,
AND EUKOR CAR CARRIERS INC. TO THE JOINT MOTION OF
COMPLAINANTS FIAT CHRYSLER AUTOMOBILES NV, FCA US LLC, AND
FCA ITALY S.P.A., AND KAWASAKI KISEN KAISHA, LTD., AND "K" LINE
AMERICA, INC. FOR APPROVAL OF SETTLEMENT AGREEMENT, DISMISSAL
WITH PREJUDICE OF THE COMPLAINT, AND TREATMENT OF SETTLEMENT
AGREEMENT AS CONFIDENTIAL**

Respondents Wallenius Wilhelmsen Logistics AS, Wallenius Wilhelmsen Logistics Americas LLC, and EUKOR Car Carriers Inc. (collectively, "WWL/EUKOR"), by way of their partial opposition to the joint motion of complainants Fiat Chrysler Automobiles N.V., FCA USA LLC, and FCA Italy S.p.A. (collectively, "FCA"), and respondents Kawasaki Kisen Kaisha, Ltd. and "K" Line America, Inc. (collectively, "'K' Line") for approval of settlement agreement, dismissal with prejudice of the complaint against "K" Line and treatment of settlement agreement as confidential, respectfully represent as follows:

1. WWL/EUKOR interpose no opposition to (a) the motion for approval of the settlement agreement between FCA and “K” Line or (b) the motion for dismissal with prejudice of FCA’s complaint against “K” Line.

2. However, for the reasons advanced in WWL/EUKOR’s April 10, 2019 amended motion and memorandum for clarification of the confidentiality provisions of the April 2, 2019 order and initial decision approving a confidential settlement, WWL/EUKOR oppose the request to treat the settlement agreement as confidential in respect of WWL/EUKOR; for ease of reference, WWL/EUKOR’s April 10, 2019 amended motion and memorandum for clarification of the confidentiality provisions of the April 2, 2019 order and initial decision approving a confidential settlement is incorporated here by reference as if the same was set forth here at length.

3. For those reasons, WWL/EUKOR respectfully submit that any relief afforded in respect of FCA’s and “K” Line’s request to treat the settlement agreement as confidential should not apply to WWL/EUKOR, subject to the following appropriate restrictions: use of the settlement agreement or its contents shall be limited solely for the purposes of the defense of this action; the settlement agreement or its contents shall not be used by WWL/EUKOR for any business, commercial, competitive, personal or other purpose; and the settlement agreement and its contents shall not be disclosed by WWL/EUKOR to anyone other than the WWL/EUKOR parties and their respective in-house counsel, outside counsel, outside experts or consultants retained by outside counsel, secretarial, paralegal, clerical, duplicating and data processing personnel of the foregoing, the Federal Maritime Commission, any deponent, and any vendor retained by or for the parties to assist outside counsel.

WHEREFORE, for the foregoing authority, arguments and reasons, WWL/EUKOR respectfully request (a) that FCA's and "K" Line's joint motion to treat the settlement agreement as confidential be denied as it may impact WWL/EUKOR, (b) that any confidentiality of the settlement agreement not extend to WWL/EUKOR, subject to the restrictions set forth in paragraph 3, above, and (c) that such other and further relief that is just and proper consistent with this prayer for relief issue.

DATED: April 23, 2019

Respectfully submitted,



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America LLC, and EUKOR Car Carriers, Inc.*

CERTIFICATE OF SERVICE.

I hereby certify that, on April 23, 2019, true and correct copies of the foregoing partial opposition of respondents' Wallenius Wilhelmsen Logistics AS, Wallenius Wilhelmsen Logistics Americas LLC, and EUKOR Car Carriers Inc. to the joint motion of Fiat Chrysler Automobiles NV, FCA USA LLC, and FCA Italy S.p.A. and respondents Kawasaki Kisen Kaisha, Ltd. and "K" Line America, Inc. for approval of settlement agreement, dismissal with prejudice of the complaint, and treatment of settlement agreement as confidential was filed electronically with the Secretary of the Federal Maritime Commission, and electronic copies thereof were sent to all counsel of record in Docket No. 17-09.

DATED: April 23, 2019



Roberto A. Rivera-Soto